

**UNITED STATES DISTRICT COURT
DISTRICT OF NORTH DAKOTA**

PLAN FOR RANDOM JURY SELECTION

Pursuant to the Jury Selection and Service Act of 1968 (Public Law 90-274) as amended, the United States District Court for the District of North Dakota adopts this plan for the random selection and service of grand and petit jurors, subject to approval by the designated reviewing panel of the Eighth Circuit and to such rules and regulations as may from time to time be adopted by the Judicial Conference of the United States.

The purpose of this plan is to implement the policies of the United States declared in 28 U.S.C. § 1861;:

that all litigants in Federal courts entitled to trial by jury shall have the right to grand and petit juries selected at random from a fair cross section of the community in the district or division wherein the court convenes; . . . that all citizens shall have the opportunity to be considered for service on grand and petit juries in the district courts of the United States, and shall have an obligation to serve as jurors when summoned for that purpose.

The purpose of this plan is also to implement the prohibition against discrimination contained in 28 U.S.C. § 1862, which provides that no citizen shall be excluded from service as a grand or petit juror in the district courts of the United States on account of race, color, religion, sex, national origin, or economic status.

I. Application and Management

The provisions of this plan apply with equal force and effect to each of the two divisions of this district. The clerk is authorized and directed to manage the jury selection process. For purposes of this plan, the term “clerk” includes the clerk, any authorized deputy, and any other person authorized to assist the clerk in the performance of functions under this plan.

II. Source of Names

The central voter file is a permanent, centralized electronic data base of voters, established with the Office of the North Dakota Secretary of State and county auditors linked together by a centralized statewide system. The county auditor is chief custodian of the central voter file records in each county. The Secretary of State is responsible for maintaining the central voter file. N.D.C.C. § 16.1-02-01.

The general election, fixed by North Dakota statute for the first Tuesday after the first Monday in November of each presidential election year, is an election in which statewide voting for state and federal offices occurs. N.D.C.C. § 16.1-13-01. The source of names of prospective grand and petit jurors is the list of actual voters at the presidential election as contained in the central voter file.

III. Procedure for Selection from List of Actual Voters

- A. At the clerk's option, and after consultation with the court, the selection of names from complete source list databases in electronic media for the master jury wheel may be accomplished by a purely randomized process through a properly programmed electronic data processing system. Similarly, at the option of the clerk and after consultation with the court, a properly programmed electronic data processing system for pure randomized selection may be used to select names from the master wheel for the purpose of summoning persons to serve as grand or petit jurors. This random selection of names from the source list for inclusion in the master wheel by data computer personnel must ensure that each county within the jury division is substantially proportionally represented in the master jury wheel in accordance with 28 U.S.C. § 1863(b)(3). The selection of names from the source list must also ensure that the mathematical odds of any single name being picked are substantially equal.
- B. Alternatively, the court may use a method of random selection of names uniformly applied to the list of actual voters of all counties assigned to each master wheel, as set out in Section IV, to ensure substantial proportional representation in the wheel and to reflect a fair cross section of the persons residing in each county. Random selection of names may be accomplished by using the following method:
 1. Determining a Quotient.

After determining the total number of actual voters for all counties within each division, divide that number by the number of names needed for the jury wheel. The result is the quotient. The quotient is the ratio of selected to unselected names. For example, if the court determines that to supply jury requirements for four years 10,000 names will be needed in the master jury wheel and if there is a total of 200,000 names on all the county voter lists within the division, the quotient would be 20 (200,000 total names divided by 10,000 names) and every 20th voter name should be placed in the master jury wheel.
 2. Determining a Starting Number.

After determining the quotient, the clerk must establish a starting number which is the first name to be selected from the list of actual voters. The clerk manually draws the starting number from numbered slips. The slips used for the drawing should begin with a slip numbered 1 and end with a slip numbered the same as the quotient. As an example of how the quotient and starting number are used, if the quotient is assumed to be 20 and the starting number to be 8, the first name chosen from each county would be the 8th name on the list of actual voters, the second name would be the 28th, the third name would be the 48th, etc. to the end of the list of actual voters. The list of actual voters for the entire county, arranged in numerical order, by precinct, must be used. The starting number must be used only once. The clerk must prepare a certificate as to the starting number which must become a part of the jury record.

- C. In an emergency circumstance (for example, if automated systems were unavailable), after consultation with the court, the clerk may use the selection method in subsection (B) for the random selection of names.

IV. **Master Wheels**

- A. The clerk must maintain a master wheel (or a device similar in function and purpose) for each of the two divisions of the district.

Names from the following counties must be placed in the master wheel and constitute the Eastern Division:

Barnes	Griggs	Rolette
Benson	LaMoure	Sargent
Cass	Nelson	Steele
Cavalier	Pembina	Stutsman
Dickey	Ramsey	Towner
Eddy	Ransom	Traill
Foster	Richland	Walsh
Grand Forks		

Names from the following counties must be placed in the master wheel and constitute the Western Division:

Adams	Hettinger	Oliver
Billings	Kidder	Pierce
Bottineau	Logan	Renville
Bowman	McHenry	Sheridan
Burke	McIntosh	Sioux
Burleigh	McKenzie	Slope
Divide	McLean	Stark
Dunn	Mercer	Ward
Emmons	Morton	Wells
Golden Valley	Mountrail	Williams
Grant		

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- B. The minimum number of names to be placed initially in the master wheel for each of the two divisions must be 10,000 or one-half of one per cent of the total number of persons on the list of actual voters for the counties respectively designated for each master wheel, whichever is greater.
- C. The court may order additional names to be placed in the respective master wheels from time to time as necessary.
- D. The master wheels must be emptied and refilled between January 1 and September 1 of each year following a presidential election.

V. Drawing from Master Wheel; Completion of Qualification Forms

From time to time, as directed by the court, the clerk draws at random from the appropriate master jury wheel the names of as many persons as may be required for jury service at Fargo and Bismarck and secures completion of juror qualification forms in the manner specified and as required by 28 U.S.C. § 1864.

At the option of the clerk and after consultation with the court, a properly planned programmed electronic data processing system for pure randomized selection may be used to select names from the master wheel for the purpose of summoning persons to serve as grand or petit jurors. The random selection of names from the source list must ensure that the mathematical odds of any single name being picked are substantially equal.

The clerk may, upon order of the court, prepare an alphabetical list of the names drawn from the master jury wheels. The list may not be disclosed to any person except pursuant to this plan or pursuant to 28 U.S.C. §§ 1867 or 1868.

Pursuant to 28 U.S.C. § 1878, at the option of the court, jurors may be qualified and summoned in a single procedure.

VI. Groups Excusable upon Request

The court finds that jury service by some groups of persons would cause undue hardship or extreme inconvenience to the members of the group. Their excuse from service would not be inconsistent with 28 U.S.C. §§1861 and 1862. Individual requests for excuse will be granted when claimed by the following groups of persons:

- A. persons over 72 years of age;
- B. full-time students;
- C. volunteer safety personnel;
- D. persons having active care and custody of a child if the health or safety of the child would be jeopardized by the person's absence for jury service;
- E. persons who are essential to the care of aged or infirm persons; or
- F. persons who have served as a grand or petit juror in federal court during the past two years.

See 28 U.S.C. § 1863(b)(5).

VII. Groups and Classes Exempt from Jury Service

Pursuant to 28 U.S.C. § 1863(b)(6), the following persons engaged in full-time employment are exempt and barred from jury service:

- A. Members in active service in the Armed Forces of the United States, defined in 10 U.S.C. § 101(a)(4) as including only the Army, Navy, Air Force, Marine Corps, Space Force, and Coast Guard;
- B. Members of the fire and police departments of any state, district, territory, or subdivision thereof; or
- C. Public officers in the executive, legislative, or judicial branches of the Government of the United States, the State of North Dakota, or subdivision thereof, who are actively engaged in the performance of official duties.

VIII. Qualifications for Jury Service

The clerk must determine qualification for service at the time of placement into the qualified wheels, under the supervision of the court. This determination and the required records are governed by 28 U.S.C. § 1865. Any person is deemed qualified to serve on grand and petit juries in this district unless the person:

- A. is not a citizen of the United States, at least eighteen years of age, who has resided for a period of one year within this judicial district;
- B. is unable to read, write and understand the English language with a degree of proficiency sufficient to complete the juror qualification form;
- C. is unable to speak the English language;
- D. is incapable, by reason of mental or physical infirmity, to render satisfactory jury service; or
- E. has a charge pending for the commission of, or has been convicted in a state or federal court of record of, a crime punishable by imprisonment for more than one year and whose civil rights have not been restored.

IX. Qualified Jury Wheels; Selection, Assignment, and Summoning of Petit and Grand Jury Panels.

- A. The clerk must maintain a qualified jury wheel for each division and place in each wheel the names of all persons drawn from the master wheel who are determined to be qualified as jurors and not exempt or excused under this plan.
- B. From time to time as the court may direct, the clerk must notify a sufficient number of jurors drawn from the qualified wheel to appear for jury service for trial as set by the court.
- C. One or more grand juries may be drawn for and from the entire district, or for and from any separate division or combination of divisions. All grand juries may indict for any offense in which venue originally is in any division of the district. Grand juries are empaneled only in Fargo or Bismarck unless otherwise ordered by the court.
- D. When the court orders a grand jury, to be empaneled, for and from the entire district, the clerk must draw an appropriate number of names from the master wheel, apportioning the number drawn from each division according to the proportion that the total of actual voters for all counties represented in each of the two divisions bears to the total of actual voters in the entire state.

Questionnaires and summons are issued to these persons and upon their appearance before the court, 23 members are drawn at random and are empaneled as provided by law. The court may also empanel, in the same manner, alternate grand jurors to serve in the order in which they are drawn if it becomes necessary to permanently excuse a regular grand juror.

- E. When the court orders a grand jury to be empaneled for and from any separate division or combination of divisions, the clerk must draw an appropriate number of

names from the master wheel, apportioning the number drawn from each division or combination of divisions according to the proportion that the total of actual voters for all counties represented in the division or a combination of divisions bears to the total of actual voters in that division or combination of divisions.

Questionnaires and summons are issued to these persons and upon their appearance before the court, 23 members are drawn at random and are empaneled as provided by law. The court may also empanel, in the same manner, alternate grand jurors to serve in the order in which they are drawn if it becomes necessary to permanently excuse an already empaneled grand juror.

- F. The clerk must maintain records of the issuance and service of questionnaires and summons as provided in 28 U.S.C. § 1866.
- G. The clerk is responsible for the disqualification, exclusion, excuse, or exemption from jury service after service of summons has been made as provided in 28 U.S.C. § 1866(c). Except as provided in 28 U.S.C. § 1865 and the provisions of this plan, no person or class of persons are disqualified, excluded, excused, or exempt from service as jurors. However, any person summoned for jury service may be:
 - 1. excused by the clerk upon a showing of undue hardship or extreme inconvenience for such period as the court deems necessary at the conclusion of which the person may be summoned again for jury service, or
 - 2. excluded by the court on the grounds that the person may be unable to render impartial jury service or that service as a juror would be likely to disrupt the proceedings, or
 - 3. excluded upon peremptory challenge as provided by law, or
 - 4. excluded pursuant to the procedure specified by law upon a challenge by any party for good cause shown, or
 - 5. excluded upon determination by the court that the person's service as a juror would be likely to threaten the secrecy of the proceedings or otherwise adversely affect the integrity of jury deliberations.
- H. If an unanticipated shortage of available petit jurors drawn from the qualified jury wheel occurs, the court will direct the marshal to summon a sufficient number of petit jurors selected at random from the list of actual voters of the division in which the court is then sitting. The court determines this procedure is consistent with 28 U.S.C. §§ 1861 and 1862.
- I. The clerk empties and refills the respective qualified wheels in each year when the master wheels are refilled as provided in Section IV(D) of this plan and as soon as names drawn from the refilled master wheels can be qualified for jury service in numbers sufficient to permit continuous operation of the court.

X. Disclosure of Names Drawn from Qualified Wheels
This disclosure policy applies to civil and criminal cases.

- A. Unless otherwise ordered by the trial judge, the court may disclose to the parties the name, city, and occupation of petit jurors drawn from the qualified wheels for each place of holding court after an official notice to appear for jury service has been issued.
- B. The court must not disclose juror information to the public or the media unless a written request is made and the court orders the disclosure. If a request for disclosure is granted, the information disclosed to the public or the media must be limited to only the names of petit jurors summoned for jury service.
- C. The court must not disclose the names of grand jurors drawn from the master wheel to anyone other than the United States Attorney, except upon court order.
- D. The court must not include documents containing information about jurors or prospective jurors in the public files of any civil or criminal cases. These documents must be kept with the jury records.

XI. Non-disclosure of Records

The clerk must not disclose the contents of records and papers used in connection with the jury selection process, including juror qualification questionnaires, except as provided in 28 U.S.C. § 1867(f) and in this plan. Parties requesting access to these records must petition the court in writing setting forth the reasons for requesting access and allowing sufficient time for compliance if the petition is granted. The court may provide copies of juror qualification questionnaires of jurors who have been summoned for grand jury service to the United States Attorney before empanelment of a grand jury.

XII. Maintenance of Records

The clerk must maintain all records and papers compiled and used in the jury selection process, using intervals of time commencing with proceedings to fill the master wheels and ending when all persons selected to serve before the wheels were emptied have completed their service. The clerk must preserve the records for four years as required by 28 U.S.C. § 1868 and then destroy the records unless otherwise ordered by the court.

XIII. Protection of Employment Rights

If an employer discharges, threatens to discharge, intimidates, or coerces any permanent employee by reason of such employee's jury service or the attendance or scheduled attendance in connection with such service in this court, the employer shall be considered in violation of 28 U.S.C. § 1875.

XIV. Modification

This plan may be modified only in the manner provided for in 28 U.S.C. § 1863(a) and (c).

XV. Effective Date

This plan for jury selection is placed in operation after approval by the reviewing panel as provided in 28 U.S.C. § 1863 as amended by the Jury Selection and Service Act of 1968.

Jury service under this plan is required upon order of this court at such time as processing of the juror qualification questionnaires has been completed. This plan remains in force and effect until approval of one or more modifications of this plan by the reviewing panel. Modifications of this plan may be initiated by the court and submitted to the reviewing panel for approval; and this plan must be modified as and when directed by the reviewing panel.

XVI. Review

The clerk must periodically review this plan, at a minimum each time the master jury wheel is emptied and refilled, to ensure that it complies with all statutes and Judicial Conference rules and regulations, encompasses the most effective procedures, and reflects the policy preferences of the court. See Guide to Judiciary Policy, Volume 4, Chapter 3, § 320.20.

Effective: August 18, 2025

/s/ Peter D. Welte
Peter D. Welte, Chief District Judge

United States Courts
Judicial Council of the Eighth Circuit
Thomas F. Eagleton United States Courthouse
111 South 10th Street - Suite 26.325
St. Louis, Missouri 63102-1116

Millie B. Adams
Circuit Executive

Voice (314) 244-2600
Fax (314) 244-2605
www.ca8.uscourts.gov

EIGHTH CIRCUIT JUDICIAL COUNCIL

ORDER

I hereby certify that the Eighth Circuit Judicial Council has approved the Amended Jury Plan for the District of North Dakota, as adopted by the Court effective August 18, 2025.


Millie B. Adams
Circuit Executive

St. Louis, Missouri
August 18, 2025

cc: Judicial Council Members
Chief District Judge Peter D. Welte
Kari M. Knudson, Clerk of Court

Review was undertaken by the Jury System Committee.

JCO 3480